tion,[1] of which express notice in writing shall have been given to the debtor, trustee, or other person, from whom the assignor would have been entitled to receive or claim such debt or chose in action, shall be and be deemed to have been effectual in law (subject to all equities which would have been entitled to priority over the right of the assignee if that Act had not passed) to pass, and transfer the *legal* right to such debt or chose in action from the date of such notice (*d*)." [The notice may be given at any time, even after the death of the assignor; but the effect of delaying to give notice will be to let in any equities arising in the interval before the notice is given (*e*).]

10. **Where the property is an equitable interest.** — If the subject of the trust be an *equitable* interest, then on the

[(*d*) Under the corresponding section in the Irish Act, 40 & 41 Vict. c. 57, s. 28, sub-s. 6, it was held that the volunteer assignee of a promissory note, not negotiable, and not payable at the time of the indorsement, was within the Act. Lee *v.* Magrath, 10 L. R. Ir. 45; reversed on other grounds, 10 L. R. Ir. 313.]

[(*e*) Walker *v.* Bradford Old Bank, 12 Q. B. D. 511.]

[1] In a very recent case, Lord Justice Cotton considered what was the origin of the term *chose in action*: "I shall not go very far back in considering what was the origin of the term *chose in action*. It is sufficient in my opinion to go as far back as Blackstone. After having dealt with personal property in possession, he goes on thus: 'Having thus considered the several divisions of property in possession, which subsists there only where a man hath both the right and also the occupation of the thing, we will proceed next to take a short view of the nature of property in action, or such where a man hath not the occupation, but merely a bare right to occupy the thing in question; the possession whereof may however be recovered by a suit or action at law: from whence the thing so recoverable is called a thing or *chose in action*.' Comm. vol. II, p. 39. I may also refer to what was said, to my mind in rather plainer terms, by Mr. Joshua Williams in his book on Personal Property, 12th ed., p. 4, where he says: 'Although there was formerly no such thing as an incorporeal chattel personal, there existed not unfrequently a right of action, or the liberty of proceeding in the Courts of law either to recover pecuniary damages for the infliction of a wrong, or the non-performance of a contract, or else to procure the payment of money due. Such a right was called, in the Norman-French of our early lawyers, a *chose* or thing in action, whilst movable goods were denominated *choses in action*. Originally those *choses in action*, except in the case of *choses in action* of the Crown, could not be assigned, and they were not considered really to be property.'" Colonial Bank *v.* Whinney, 30 Ch. Div. at pp. 275, 276. In this case it was decided that shares in a company incorporated under a statute with power to transfer, so as to vest the shares at law in the person standing on the register, are not *choses in action*. Cotton and Lindley, L. JJ., *dissentiente* Fry, L. J.